

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Team # 4	CCRB Case #: 201403238	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/04/2014 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/4/2015	Precinct: 77		
Date/Time CV Reported Fri, 04/04/2014 2:46 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 04/04/2014 2:46 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. DT2 Waliur Rahman	06428	907113	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Robert Maloney	05057	930640	NARCBBN
2. CPT Andrew Valenzano	00000	923294	NARCBBN
3. DT3 James Ellerbe	02184	932600	NARCBBN
4. DT3 Brian Chichotky	00726	934631	NARCBBN
5. DT3 Warren Rohan	02378	926018	NARCBBN
6. DT3 Samuel Lallave	03824	894731	NARCBBN
7. DT3 Christophe Rodrigo	07729	929060	NARCBBN
8. DT3 Christophe Ward	06633	907551	NARCBBN
9. DT3 Timothy Erwig	02533	919006	NARCBBN
10. DT3 Susie Peralta	03331	922814	NARCBBN
11. DT3 Kevin Rodgers	07594	929059	112 DET

Officer(s)	Allegation	Inv. Div. Recommendation
A . DT2 Waliur Rahman	Abuse of Authority: Det. Waliur Rahman entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b) and § 87(2)(b)	B . Officer(s) Unidentified
C . DT2 Waliur Rahman	Discourtesy: Det. Waliur Rahman spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . Officers	Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b)	D . Officer(s) Unidentified
E . Officers	Abuse of Authority: Officers refused to provide their names to § 87(2)(b)	E . Officer(s) Unidentified

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on April 4, 2014 (encl. b1-3). At approximately 6:00 a.m. on April 4, 2014, officers from Narcotics Borough Brooklyn North executed a search warrant at

§ 87(2)(b) in Brooklyn (**Allegation A**). Present at the time were § 87(2)(b) § 87(2)(b) -old § 87(2)(b) and an infant.

The adult occupants of the residence were arrested § 87(2)(b) (encl. c7-21). During the execution of the warrant, an officer allegedly told § 87(2)(b) that she would have to wait until the “fuck” he told her to put clothes on (**Allegation B**). An officer identified as Det. Waliur Rahman allegedly told § 87(2)(b) that he would let “the fucking dogs” attack her pet cat (**Allegation C**). § 87(2)(b) was taken to a bathroom, and when § 87(2)(b) protested, all of the ten officers present allegedly told her, “We can do whatever the fuck we want to, this is our fucking investigation” (**Allegation B**). In the bedroom shared by § 87(2)(b) and § 87(2)(b) three officers allegedly touched their guns to the heads of § 87(2)(b) and § 87(2)(b) (**Allegation D**). An officer allegedly told § 87(2)(b) to “shut the fuck up” (**Allegation B**). Everyone was brought into the main room, where § 87(2)(b) allegedly asked two officers for their names and they replied that they did not have to provide “shit” (**Allegation E**).

Mediation, Civil and Criminal Histories

This case was not eligible for mediation. As of December 12, 2014, the New York City Office of the Comptroller found no Notice of Claim filed in regard to this incident (encl. e1). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(g)]

Civilian and Officer CCRB Histories

This is the first CCRB case involving § 87(2)(b) and § 87(2)(b) § 87(2)(b) and § 87(2)(b) were victims in CCRB case § 87(2)(b)

[REDACTED] (encl. a3-6). Det. Rahman has been a member of the NYPD for 20 years. He has been the subject of 20 CCRB allegations, one of which was substantiated: In case 9501210, a gun pointed allegation was substantiated, with no recommendation of discipline (encl. a1-2).

Findings and Recommendations

Allegations Not Pled

- § 87(2)(b) described an officer refusing to show § 87(2)(b) a warrant when she requested one. However, § 87(2)(b) did not allege this § 87(2)(g)

- § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Officer Identification

- § 87(2)(b) and § 87(2)(b) both described an officer whom they knew as “Wally” and whom they described as the only Indian male officer present. Det. Waliur Rahman, an Asian male of Bangladeshi descent, to whom the search warrant was assigned, matches their general descriptions and his first name is similar to the name attributed to him. § 87(2)(b) alleged that this officer spoke discourteously to her when the apartment was first entered. § 87(2)(g)
- § 87(2)(b) described one officer who spoke discourteously to her as a 5’4” tall, bald white male with a trimmed beard and a slim build. She also stated that all of the officers present made a particular discourteous remark. § 87(2)(b) described an officer who used profanity toward § 87(2)(b) as a 5’0” tall, white male officer in his late 30s with dark hair. § 87(2)(b) stated that a 5’6” tall white male with black hair in his late 20s who had said he was in charge spoke discourteously toward him, and that this officer and another (described as a 6’2” tall, fat white male with gray hair) did not provide their names when asked. § 87(2)(b) stated that a 5’0” tall, stocky, bald white male with a beard was discourteous and told him, “I’m in charge here.” § 87(2)(b) also stated that the officer who used discourtesies had a beard and was a 5’7” tall mostly bald white male in his 30s or 40s. None of the ten officers interviewed for this case wore a beard in their MOS photograph or at the time of their CCRB interview, and none provided a statement identifying a subject. § 87(2)(g)
- § 87(2)(b) described the officer who put a gun to § 87(2)(b)’s head as a black male with gray hair who was between 5’6” and 6’2” tall with a fat build. Of the officers who executed the search warrant, the only black males are Det. James Ellerbe and Det. Warren Rohan. However, they are the same age and both officers match the height range and build described. Neither officer acknowledged going into the bedroom to wake § 87(2)(b) and § 87(2)(b). Finally, the descriptions of the officers who pointed their guns could not be used to definitively identify particular subjects. § 87(2)(g)

Allegation A – Abuse of Authority: Det. Waliur Rahman entered and searched § 87(2)(b) in Brooklyn.

The entry and search of the residence was conducted under the authority of a valid “no-knock” search warrant for which Det. Rahman was the affiant (encl. d1). Therefore, it is recommended that **Allegation A** be **exonerated**.

Allegation B – Discourtesy: Officers spoke discourteously to § 87(2)(b) and § 87(2)(b)

Allegation C – Discourtesy: Det. Waliur Rahman spoke discourteously to § 87(2)(b)

Allegation D – Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b)

Allegation E – Officers refused to provide their names to § 87(2)(b)

§ 87(2)(b) alleged that soon after she first approached the front door, an officer told her she had to wait until the “fuck” he told her to put clothes on. She also alleged that Det. Rahman told her the “fucking dogs” would attack her cat, and that later, all ten officers in the apartment told her, “We can do whatever the fuck we want to, this is our fucking investigation.” § 87(2)(b) stated that an officer told § 87(2)(b) he could do whatever he “fucking” wanted. While this statement corroborates § 87(2)(b) allegation, the officer’s description does not. § 87(2)(b) also noted that the officer made other discourteous remarks that § 87(2)(b) did not allege (namely, that he would not show § 87(2)(b) a “fucking warrant” in response to her request for one. § 87(2)(b) on the other hand, stated that no one asked to see a warrant throughout the incident). § 87(2)(b) did not allege that any officer spoke discourteously to § 87(2)(b) after he was taken out of his room, but stated that an officer told him to “shut the fuck up” before he and another officer refused to provide their names. Of the other civilians present, only § 87(2)(b) corroborated this after being asked directly if officers’ names were requested. § 87(2)(b) stated that an officer told him to “get the fuck up” and said, “Shut the fuck up.” § 87(2)(b) provided a telephone statement in which she answered in the affirmative when asked directly whether an officer made specific discourteous remarks like “Shut the fuck up.” However, she did not cooperate with the investigation’s subsequent attempts to obtain a sworn statement. Because § 87(2)(b) did not cooperate with the investigation, no statements were obtained from him.

§ 87(2)(b) alleged that officers placed their guns against his head and those of § 87(2)(b) and § 87(2)(b). Because § 87(2)(b) did not provide a statement to the CCRB, his account of the gun pointed allegation remains unknown. § 87(2)(b) did not allege that this happened to him, but stated that at the time he could only see the one officer in the room who was pointing a gun at him.

Det. Rahman acknowledged speaking with § 87(2)(b) and explaining the search warrant to her. He and every other officer in the apartment who was interviewed (Sgt. Robert Maloney, Det. Warren Rohan, Det. James Ellerbe, Det. Brian Chichotky, Det. Christophe Rodrigo, Det. Susie Peralta, Det. Timothy Erwig, and Det. Samuel Lallave) denied using profanity or hearing any profanity being used by any officer during the incident, and these officers did not hear any civilian ask for an officer’s name. Det. Christopher Ward stated that he did not enter the apartment because he was assigned to window security outside the building.

Det. Rahman stated that he and Det. Kevin Rodgers went into the bedroom occupied by § 87(2)(b) and § 87(2)(b). He did not recall if other officers entered this room with them. His weapon was not drawn because he was responsible for handcuffing civilians. He denied seeing any officer put their gun to the head of any civilian, as did Sgt. Maloney, Det. Rohan, Det. Ellerbe, Det. Chichotky, Det. Rodrigo, Det. Peralta, Det. Erwig and Det. Lallave.

§ 87(2)(g)

Therefore, it is recommended that Allegation C be **unsubstantiated** and Allegations B, D, and E be closed as **Officers Unidentified**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date